

DEPARTMENT TWENTY-TWO
HONORABLE ALESIA JONES
707-207-7322

**TENTATIVE RULINGS
AND
PROBATE PREGRANTS**

CALENDAR DATE: July 13, 2026

ADVISEMENTS

Probate Notes: Probate notes are available in individual cases and are not posted on the public website. For more information on how to access case information through the court's public portal, please visit <https://portal.solano.courts.ca.gov>.

Civil Tentative Rulings and Probate Pregrants: Current procedures to advise the court of appearances and nonappearances in response to tentative rulings and pregrants remain unchanged. Probate pregrants and tentative rulings are not posted for conservatorships, guardianships, or any ex parte matters.

Appearances by Zoom: Remote appearances by Zoom are permitted except for MSCs, TMCs, trials or evidentiary hearings, or cases in which in-person appearances have been ordered. Persons appearing by Zoom are to be in appropriate attire. They are also to be in a quiet place where they can speak without interruption and clearly hear the proceedings.

Zoom Meeting ID: 160 941 6482

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To access Zoom by telephone:

• 833 568 8864 US Toll-free

**PREGRANTS AND TENTATIVE RULINGS
START ON THE NEXT PAGE**

9:30 a.m. CALENDAR

LINE

5

**IN RE THE ESTATE OF JENNIFER J.L. HUDSON-JONES, DECEASED
PR24-00051**

Petition to Compel Accounting by Surviving Spouse and for Order to Show Cause re:
Waste of Estate Assets Cal. Prob. Code §§ 10950, 850, 9611, 8800; CCP § 526a

PREGRANT ORDER

The court notes that there is no Proof of Service for the petition, which would usually cause the court to continue the matter to allow for service. However, the court finds that there is no legal basis for this petition. The surviving spouse was not the administrator and cannot be compelled to account. The surviving spouse is entitled to receive a 1/3rd portion of the remaining estate per Probate Code section 6401(c)(3) and is not required to account for that share. Additionally, the surviving spouse assigned their interest in the real property to the decedent's surviving children (including the moving party) and grandchildren. The court has signed the order for final distribution which reflects this distribution.

The court dismisses the petition. The court cautions the moving party that continuing to file unmeritorious motions and petitions may result in the moving party being deemed a vexatious litigant per Code of Civil Procedure section 391.

LINE

6

**IN RE THE ESTATE OF LINDA D. KELLY-CROSS, DECEASED
PR24-00109**

First and Final Account and Report of Administrator; Petition for Allowance of Statutory Administrator and Attorney's Fees; and Petition for Final Distribution

PREGRANT ORDER

This matter was continued from June 8, 2026. The court has reviewed the second supplement filed June 11, 2026, the third supplement filed July 7, 2026, and the Stipulation filed July 7, 2026 which resolved the issues.

The court finds all notices have been given as required by law. The petition as supplemented is granted as prayed, except that release of liability and discharge shall be ordered only upon the filing of the *Ex Parte Petition for Final Discharge and Order* once assets are distributed pursuant to Probate Code § 11753.

LINE

7

IN RE THE ESTATE OF FRED JAMES SHAIR, DECEASED
PR24-00336

Order to Show Cause to Daniel Shair

PREGRANT ORDER

The court previously issued sanctions of \$1,000.00 against Daniel Shair for his failure to appear at multiple hearings and his failure to file an Inventory and Appraisal.

Daniel Shair to appear and show cause why he should not be removed as administrator of the estate. He shall also be prepared to explain his failure to file an Inventory and Appraisal. Failure to appear may result in the imposition of additional sanctions under Code of Civil Procedure section 177.5.

LINE

8

IN RE THE ESTATE OF VICTOR AHMAD MALIK, DECEASED
PR24-00530

First and Final Report of Administrator and Petition for (1) Settlement of First and Final Account (2) Final Distribution (3) Allowance of Statutory Decedent Compensation for Administrator and for Attorneys for Administrator (4) Allowance of Extraordinary Compensation for Attorneys for Administrator (5) Allowance of Reimbursement of Costs Advanced by Administrator and Attorneys for Administrator and (6) Discharge of Bond

PREGRANT ORDER

The court on its own motion continues this hearing to September 3, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issue:

Only one of the filed Inventory and Appraisals (item 5) certify that the requirements of Revenue and Taxation Code § 480 have been satisfied.

LINE

9

IN RE THE ESTATE OF RICHARD DEAN LUKES, DECEASED
PR25-00054

First and Final Account and Report of Administrator and Petition for its Settlement; for Allowance of Statutory Compensation to Attorney for Ordinary Services; for Reimbursement of Costs Advanced; and for Final Distribution

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition as supplemented is granted as prayed, except that release of liability and discharge shall be

ordered only upon the filing of the *Ex Parte Petition for Final Discharge and Order* once assets are distributed pursuant to Probate Code § 11753.

Petitioner to submit a conforming order for the court's review and signature.

LINE

10

**IN RE THE ESTATE OF DENTON L. SYAR, DECEASED
PR25-00139**

Petition for Preliminary Distribution, Approval of First Report of Administrator on Waiver of Account, and for Order Continuing Estate Administration (California Probate Code Sections 12200 et seq)

PREGRANT ORDER

The court finds all notices have been given as required by law. Absent any objections, the petition for preliminary distribution is granted as prayed. Additionally, the court orders that the estate's administration shall continue through November 20, 2026. Unless a petition for final distribution is on file by November 20, 2026, a status report shall be filed by November 20, 2026.

LINE

11

**IN RE THE ESTATE OF JAMES E. BRATTEN, DECEASED
PR25-00531**

Petition for Final Distribution on Waiver of Accounting

PREGRANT ORDER

The court on its own motion continues this hearing to September 9, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issue:

A petition for final distribution must provide the detailed description and value of the estate to be distributed. (Solano County Local Rules, Rule 7.66(b).) Stating the percentage to be distributed to Cecile Bratten is insufficient.

LINE

12

**IN RE THE ESTATE OF HELEN STEWART, DECEASED
PR26-00078**

Petition for Probate of Lost Will and for Letters of Administration and Authorization to Administer Under the Independent Administration of Estates Act (filed by James Stewart)

Objection to Petition for Probate (filed by Anna Stewart)

Reply to Objection to Petition for Probate

Petition for Probate of Lost Will and for Letters of Administration and Authorization to Administer Under the Independent Administration of Estates Act (filed by Anna Stewart)

Objection to Petition for Probate filed by Anna Stewart (filed by James Stewart)

PREGRANT ORDER

This matter was continued from March 30, 2026 and May 21, 2026 to allow the parties to address issues with their pleadings. The court has reviewed the documents filed by the objector which resolved the issues with her competing petition. Nothing has been filed by original petitioner.

The court on its own motion continues this hearing to September 17, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the parties shall resolve the following issues as it relates to their respective pleadings:

As to the Petition filed by James Stewart:

Petition, item 8: The decedent's post-deceased spouse is a beneficiary of the estate and the decedent's trust is the residual beneficiary. However, the information for the personal representative of the Estate of Donald E. Stewart was not provided.

As to the Objection filed by Anna Stewart:

All issues resolved.

As to the Reply filed by James Stewart:

All issues resolved.

As to the Petition filed by Anna Stewart:

All issues resolved.

As to the Objection filed by James Stewart:

It appears that primary objection is that the professional fiduciary would earn fees from the estate and that family members are preferred over fiduciaries. This is insufficient in this case as it appears that the petitioner and the respondent are at odds. The appointment of a professional fiduciary may reduce the need for litigation due to the conflicts between the parties in this case.

LINE

13

**IN THE MATTER OF THE DONALD E. STEWART LIVING TRUST
PR26-00226**

Petition to Invalidate the Donald E. Stewart Living Trust Based on Undue Influence

Objection to Petition to Invalidate the Donald E. Stewart Living Trust Based on Undue Influence

PREGRANT ORDER

This matter was continued from May 21, 2026 to allow the parties to participate in court-sponsored mediation.

Counsel and parties may appear via Zoom, in person, or by CourtCall and address the following:

Status of mediation.

LINE

14

**IN RE THE ESTATE OF HERBERT A. HENLEY, III, DECEASED
PR26-00272**

Petition to Determine Succession to Primary Residence

PREGRANT ORDER

This matter was continued from June 29, 2026 to allow the petitioner to serve the amended petition. Nothing has been filed since the last hearing.

The court on its own motion continues this hearing to September 17, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

The court notes that an amended petition was filed on June 26, 2026 for a June 29, 2026 hearing. Amended petitions replace the original petition for all purposes. (Cal. Rules of Court, Rule § 7.3(3).) Notice of amended petitions must be given in the same manner as notice for original petitions. (Cal. Rules of Court, Rule § 7.53(a).) There is no proof of service in the file showing that the amended petition was served.

IN RE THE ESTATE OF RACQUEL VILLAFUERTE, DECEASED
PR26-00328

Petition for Probate of Lost Will and for Letters of Administration with Will Annexed and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court on its own motion continues this hearing to September 24, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. The original will is not on file. (Probate Code § 8200.)
2. Petition, item 1: The petitioner did not specify which newspaper will be used for publication. Additionally, either (a) or (b) must be marked.
3. Petition, item 2.a: This box should be marked.
4. Petition, item 2.d: Either (1), (2), or (3) must be marked.
5. Petition, item 3.b: The county of the decedent's citizenship must be listed.
6. Petition, item 3.c: The decedent's full address must be listed.
7. Petition, item 3.d: The value of the estate is unclear.
8. Petition, item 3.e: Either (1), (2), (3), or (4) must be marked.
9. Petition, item 3.h: Either (3) or (4) must be marked.
10. Petition, item 5.a: Either (1) or (2) must be marked. Either (3) or (4) must be marked. On subsection (5) either (a) or (b) must be marked. Either (7) or (8) must be marked.
11. Petition, item 5.b: Either (was) or (was not) must be marked.
12. Petition, item 7: Both (a) and (b) are marked. The petitioner shall clarify whether the decedent had a spouse or not.
13. Petition, item 8: The relationships of the persons listed to the decedent are not stated as required.
14. Petition, item 9: The petition must also be signed by the self-represented litigant on the attorney signature line. (Probate Code §§ 1020, 1021; California

Rules of Court, Rule 7.103.)

15. Notice of Petition, item 2: This item must be completed.
16. Notice of Petition, item 10: This item must be completed.
17. There is no completed Duties and Liabilities of Personal Representative form on file (Prob. Code § 8404).
18. There is no proof of publication on file. (Prob. Code § 8124.)
19. There is no Proof of Service on file showing all those entitled to notice have received it per Probate Code section 8110.
20. One beneficiary of the decedent's will resides in the Philippines. The petitioner shall advise if the beneficiary is a citizen of the Philippines. If the beneficiary is a citizen of the Philippines, notice of the hearing must be given to the appropriate embassy or consulate per Probate Code section 8113.

LINE

16

IN RE THE ESTATE OF SHIRLEY MAUREEN BAKER, DECEASED
PR26-00329

Petition for Probate of Will and for Letters Testamentary and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court on its own motion continues this hearing to September 3, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. Petition, item 3.d: The total value of the estate must be stated.
 2. Petition, item 8: The predeceased spouse's name and date of death must be provided. (Solano County Local Rules, Rule 7.51(b).)
 3. There is no completed Duties and Liabilities of Personal Representative form on file (Prob. Code § 8404).
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